

UNIT OF EDUCATION AND MINORS AEPD

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CRITERIA FOR THE PROCESSING OF PERSONAL DATA IN EDUCATIONAL CENTERS

- The management teams, teaching staff, administrative and service personnel of educational centers, in the exercise of their functions and tasks, need to process personal data of students and their families, which they must carry out with due diligence in compliance with the regulations governing it and with respect to their privacy and intimacy, keeping in mind the interest and protection of minors, and adhering to the action protocol established by the data controller.
- The educational administrations, in the case of public centers, and the educational centers themselves, if they are concerted or private, are the Data Controllers of the personal data that, among other tasks, must train their staff on the basic principles and how to carry out the processing correctly.
- As a general rule, educational centers do not need the consent of the data subjects or their parents or guardians for their processing, as it will be justified in the exercise of the educational function and in the execution of the relationship arising from student enrollments. However, families must be informed in an intelligible and easily accessible manner (for example, in the same form in which personal data is collected), using clear and simple language, about at least:
 - the identity of the data controller: the corresponding educational administration in the case of public centers or the educational center, for concerted or private centers,
 - the purpose for which the personal data is collected and its legality, for example, for the exercise of the educational function, mission of public interest, or to disseminate and publicize the activities of the center, based on express consent,
 - the rights of the interested parties, for example, the rights of access or rectification and where to exercise them,
 - the rest of the information such as the contact details of the Data Protection Officer (DPO), the recipients of the data, or the retention period can be provided through an email address or another means that allows easy access to it.
- The data protection regulations establish the mandatory designation of a Data Protection Officer (DPO) in educational centers that offer teachings at any of the levels established in the legislation regulating the right to education. Furthermore, it establishes that they will be the interlocutor with the interested parties for issues related to personal data protection, which includes doubts, complaints, and claims, both from families and education professionals; their contact must be easily accessible, for example, on the center's website.
- When it is necessary to obtain the consent of students or their parents or guardians for the use of their personal data for purposes other than the educational function (necessary in the publication of images on websites, blogs, social media, and equivalent services), each of these purposes must be clearly communicated, allowing the interested parties to oppose those they consider appropriate. Consent must be express.

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- The data controller (educational administrations for public centers, and educational centers for concerted or private centers) must have protocols, instructions, guides, directives, or recommendations for the use of ICT (information and communication technologies) by the teaching staff. These should only use the applications/platforms/services that the data controller has provided, and their teaching and use must be adapted to the developmental level of the students.
- Communications between the teaching staff and the parents of the students must be conducted solely through the means made available by the data controller (usually through educational platforms or the corporate email of the center).

- The use of instant messaging applications (such as WhatsApp or Telegram) between the teaching staff and parents or between the teaching staff and students is not recommended. However, in cases where the best interest of the minor is at stake, such as in the event of an accident or illness during a school trip, and in order to inform and reassure the parents, holders of parental authority, messages could be sent communicating the situation and capturing images to send, but only to the families affected by the situation.
- The teaching staff must be careful with the content of classwork that they upload to the Internet and should only use the means validated by the data controller. Furthermore, they should convey the same caution to the students and teach the value of privacy for oneself and others, as well as inform them that photos or videos of other students or teachers or other school staff should not be taken without their consent, and much less disseminated on social media, to avoid the risk of digital violence (cyberbullying, grooming, sexting, gender-based violence...). Organic Law 8/2021 on comprehensive protection of children and adolescents against violence (LOPVI) stipulates that all educational centers where minors study must have a Coordinator for the well-being and protection of students, who, under the supervision of the center's management, will promote the communication of situations that involve unlawful data processing to the Data Protection Authorities (Article 35.1).
- When educational centers organize and hold events (Christmas parties, end-of-year celebrations, sports events) attended by the families of the students, it would be good practice to inform, for example, when requesting authorization to participate, or through notices or posters, about the possibility that families may record images exclusively for their personal and domestic use (private, family, friendship activities) and not for access by an indeterminate number of people.